

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No. _____
TAFARI HENRY, ABNER SPARKES, and TITANIA
DIGGS, Date Filed: _____

Plaintiffs,

SUMMONS

-against-

THE CITY OF NEW YORK, STEVEN LIMA,
ANTHONY VARGAS, and JOHN DOES #1-4, being the
fictitious names of New York City Police Department
officers whose names are unknown to Plaintiff,

Pursuant to CPLR 504(3),
Plaintiff designates County
of Queens as venue based on
where the cause of action
arose.

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TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon Plaintiffs' attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Manhasset, New York
July 15, 2024

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorney for Plaintiffs

**TAFARI HENRY, TITANIA DIGGS,
and ABNER SPARKES**

1129 Northern Blvd., Suite 404
Manhasset, New York 11030-3022
(212) 571-2266
(Our File # 553-001)

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK

C/O Georgia M. Pestana, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

STEVEN LIMA (Shield # 31540)

C/O New York City Police Department
1 Police Plaza
New York, New York 10007

ANTHONY VARGAS

C/O New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No. _____
TAFARI HENRY, ABNER SPARKES, and TITANIA
DIGGS,

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, STEVEN LIMA,
ANTHONY VARGAS, and JOHN DOES #1-4, being the
fictitious names of New York City Police Department
officers whose names are unknown to Plaintiff,

Defendants.

-----X

Plaintiffs, through their counsel, state for their Complaint the following:

PARTIES

1. Plaintiff TAFARI HENRY is an individual who resides in New York State.
2. Plaintiff ABNER SPARKES is an individual who resides in New York State.
3. Plaintiff TITANIA DIGGS is an individual who resides in New York State.
4. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation organized under the laws of the State of New York, in and as the City of New York.
5. Defendant STEVEN LIMA is an individual whose residence is unknown. He works for the New York City Police Department in Queens County, New York State.
6. Defendant ANTHONY VARGAS is an individual whose residence is unknown to Plaintiff. He works for the New York City Police Department in Queens

County, New York State.

7. Defendant JOHN DOES # 1-4 are New York City Police Department officers whose names and addresses are presently unknown to Plaintiff.

8. The individual Defendants (that is, the individual police officers) are being sued both in their individual capacity and in their official capacity as police officers employed by Defendant CITY.

9. Notices of claim were served on Defendant CITY.

10. To date, the adjustment or payment has been neglected or refused.

FACTS

11. On July 28, 2023, at about 3:00 A.M., Plaintiffs were lawfully at 115-30 224th Street, Cambria Heights, NY 11411 (in Queens County).

12. On July 28, 2023, Defendant STEVEN LIMA (shield # 31540), ANTHONY VARGAS, and JOHN DOES # 1 - 4 were New York City Police Department officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

13. On July 28, 2023, the Plaintiffs, who are black, were arrested for no reason by Defendant Police Officers.

14. A reasonable person or police officer should have known that Plaintiffs had committed no crime, violation, or infraction.

15. Defendant Police Officers had no warrant to arrest Plaintiffs.

16. Defendant Police Officers otherwise had no other lawful reasons to arrest Plaintiffs.

17. Notwithstanding, Defendant Police Officers arrested and handcuffed

Plaintiffs.

18. Before being handcuffed, Plaintiff attempted to inform Defendant Police Officers that he had committed no crime and did not want to be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

19. Upon arrival at the jail, the police subjected Plaintiffs to humiliating searches and confiscated all of their money and personal belongings.

20. Plaintiffs were then incarcerated in cells with criminals.

21. Eventually, Plaintiffs were released from jail after spending significant time in custody.

22. Defendant police officers also stole Plaintiffs' property, including, but not limited to, a computer and tools.

23. After being released from jail, a criminal proceeding was brought against Plaintiffs ABNER SPARKES and TITANIA DIGGS, and because the criminal proceeding lacked merit, all of the charges in the criminal proceeding were dismissed outright on November 1, 2023, and ACD'ed. The docket # of the criminal complaint against ABNER SPARKES was Queens Criminal Docket # CR-021811-23QN. Upon information and belief, the docket # against TITANIA DIGGS was the same or is unknown at this time to Plaintiffs.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

24. Plaintiffs repeats and re-alleges every allegation in this complaint.

25. Defendant Police Officers intended to confine and completely confined

Plaintiffs.

26. Plaintiffs were cognizant of the confinement.

27. Plaintiffs objected to the confinement to which he did not consent.

28. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

29. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights and, discriminating and profiling them because of their race.

30. Defendant Police Officers violated Plaintiffs' civil liberties and rights under the United States Constitution, including, but not limited to, the Bill of Rights, the Fourth Amendment, the Sixth Amendment, and the Fourteenth Amendment.

31. Pursuant to 42 U.S.C. § 1983, Plaintiffs are entitled to damages from Defendant Police Officers for violating Plaintiff's constitutionally protected civil rights.

32. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has the policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

33. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff, based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

34. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiffs are also entitled to damages from Defendant CITY for violations of Plaintiffs' constitutionally protected civil rights.

35. Finally, all Defendants are liable for paying Plaintiffs an award of counsel fees in an amount to be determined by this Court, pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

36. Plaintiffs repeat and re-allege every allegation in this Complaint.

37. Defendant Police Officers intended to confine and completely confined Plaintiffs.

38. Plaintiffs were cognizant of the confinement.

39. Plaintiffs voiced objections to the confinement to which they did not consent.

40. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.

41. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.

42. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.

43. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiffs.

THIRD CAUSE OF ACTION**(Battery)**

44. Plaintiffs repeat and re-allege every allegation in this complaint.
45. Defendant Police Officers' acts were intentional.
46. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with Plaintiffs, amounting to the civil tort of battery.
47. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.
48. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiffs.
49. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION**(Negligence)**

50. Plaintiffs repeat and re-allege every allegation in this complaint.
51. Defendant Police Officers had a duty to protect and not arrest citizens who do not commit crimes.
52. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiffs.
53. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.
54. Consequently, Defendant Police Officers are liable for negligence.

55. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiffs.

56. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

57. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

58. Plaintiff repeats and re-alleges every allegation in this complaint.

59. Defendant CITY had a duty to hire and retain competent police officers.

60. Defendant CITY knew or should have known that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

61. Defendant CITY breached its duty to hire and retain competent police officers.

62. Due to the CITY's breach, Plaintiff suffered damages.

63. Thus, Defendant CITY is liable for the negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION

(Malicious Prosecution)

64. Plaintiff repeats and re-alleges every allegation in this complaint.

65. Defendants brought a prior criminal proceeding(s) against Plaintiffs

ABNER SPARKES and TITANIA DIGGS that were terminated in favor of them (where Plaintiffs were named a criminal defendants).

66. Defendant Police Officers had malice in prosecuting Plaintiffs in the prior criminal proceeding(s).

67. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

68. Thus, all Defendants are liable for malicious prosecution.

SEVENTH CAUSE OF ACTION

(Conversion)

69. Plaintiff repeats and re-alleges every allegation in this Complaint.

70. Defendant Police Officers confiscated and did not return Plaintiffs' property, including, but not limited to, a computer and tools.

71. Defendant Police Officers had no right to do so because Plaintiffs were the lawful owner of the property.

72. Accordingly, Defendant Police Officers are jointly and severally liable for conversion.

73. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

WHEREFORE, Plaintiffs demand judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) on the Sixth Cause of Action (malicious prosecution), actual and punitive damages in the amount of \$2 million; and
- (g) on the Seventh Cause of Action (conversion), actual and punitive damages in the amount of \$2 million; and

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ORPHANED.]**

(h) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Manhasset, New York
July 15, 2024

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorney for Plaintiffs

**TAFARI HENRY, TITANIA DIGGS,
and ABNER SPARKES**

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